

25STCV19581 25STCV19581

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Case Number: 25STCV19581 Hearing Date: September 21, 2026 Dept: 732

Patricia Cornejo v. Ford Motor Company, et al.

Monday, September 21, 2026

CASE NUMBER: 25STCV19581

OPPOSED

Defendant Ford Motor Company's Demurrer to the First

Amended Complaint _____

Facts:

This is a lemon law action. The First Amended Complaint ("FAC") alleges as follows. Plaintiff Patricia Cornejo ("Plaintiff") purchased a 2019 Ford F-150 on December 26, 2018, with an express written warranty. (FAC ¶ 7.) During the warranty period, the vehicle developed defects which the manufacturer has been unable to remedy. (FAC ¶¶ 11–21.)

Procedural History: Plaintiffs

filed the Complaint on June 30, 2025, and filed the FAC on November 18, 2025, alleging six causes of action:

1.

Civ. Code § 1793.2, subd. (d)

2.

Civ. Code § 1793.2, subd. (b)

3.

Civ. Code § 1793.2, subd. (a)(3)

4.

Breach of Implied Warranty of Merchantability

5.

Negligent repair

6.

Fraudulent Concealment

Defendant

filed a demurrer on January 14, 2026.

Plaintiff

filed an opposition on September 8, 2026..

Defendant

filed a reply on September 14, 2026.

Analysis

I.

DEMURRER

A demurrer should be sustained only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Pro., §§ 430.30, et seq.) In particular, as is relevant here, a court should sustain a demurrer if a complaint does not allege facts that are legally sufficient to constitute a cause of action. (See *id.* § 430.10, subd. (e).) As the Supreme Court held in *Blank v. Kirwan* (1985) 39 Cal.3d 311: “We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. . . . Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Id.* at p. 318; see also *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 [“A demurrer tests the pleadings alone and not

the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. [Citation.]”)

“In determining whether the complaint is sufficient as against the demurrer ... if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated.” (Gressley v. Williams (1961) 193 Cal.App.2d 636, 639.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khouri v. Maly’s of Cal., Inc. (1993) 14 Cal.App.4th 612, 616.) Such demurrers “are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (Mahan v. Charles W. Chan Insurance Agency, Inc. (2017) 14 Cal.App.5th 841, 848.)

A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment. (Schifando v. City of Los Angeles, supra, 31 Cal.4th at p. 1081.) The demurrer also may be sustained without leave to amend where the nature of the defects and previous unsuccessful attempts to plead render it probable plaintiff cannot state a cause of action. (Krawitz v. Rusch (1989) 209 Cal.App.3d 957, 967.)

A.

STATUTE OF LIMITATIONS

Defendant Ford

Motor Company (“Defendant”) argues that the first through third causes of action under the Song Beverly Act are time-barred under the statute of repose set forth in Code of Civil Procedure § 871.21, that the fourth cause of action for breach of the implied warranty of merchantability is barred by its own limitations period, and that the sixth cause of action for fraud is barred by the three-year statute of limitations applicable to such claims. (Demurrer at pp. 9–15.)

Code of Civil

Procedure § 871.21 states as follows: “n action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.” (Code Civ. Proc. § 871.21, subd. (b).) Section 871.20 covers actions brought under certain lemon law code sections against manufacturers who have opted into certain litigation procedures, as Defendant has done here. (Code Civ. Proc. § 871.20, subd. (a).

This six-year

period constitutes a statute of repose rather than a statute of limitations. “A statute of repose has nothing to do with the date of injury, but bars all suits after the expiration of a specified time from the manufacture or delivery of a product or a transaction.” (Inco Development Corp. v. Superior Court (2005) 131 Cal.App.4th 1014, 1020.) This describes the six-year bar set in Code of Civil Procedure § 871.21, and Plaintiff does not dispute this characterization of the statute.

A statute of repose differs from a statute

of limitations in that statutes of limitation bar suits filed more than a specified period of time after an injury occurs or is discovered, whereas a statute of repose is a bar on all suits brought more than a specified period after the date of manufacture of a product and delivery to the purchaser. Because the date of injury is not a factor used in computing the running of the time period and because statutes of repose typically do not have tolling provisions, they “acquire a substantive nature, barring rights of action even before injury has occurred if the injury occurs subsequent to the prescribed time period.

(Burroughs v.

Precision Airmotive Corp. (2000) 78 Cal.App.4th 681, 689–690.)

“Although the

defendant must plead a statute of limitations defense to avoid forfeiture, it is the plaintiff who must plead facts showing their substantive right has not been extinguished by a statute of repose.

And unlike a procedural statute of limitations, substantive statutes of repose are generally not subject to statutory or equitable tolling.” (PGA West Residential Assn., Inc. v. Hulven Internat., Inc. (2017) 14 Cal.App.5th 156, 178, internal citations omitted.)

Plaintiff Patricia

Cornejo ("Plaintiff") here purchased the subject vehicle on December 26, 2018, meaning under the above statute of repose his Song Beverly claims were time-barred as of December 26, 2024. Plaintiff filed the Complaint on June 30, 2025, after the statute of repose expired.

Plaintiff argues

that the statute of repose ought not to apply retroactively. (Opposition at pp. 5–6.)

The doctrine of retrospectivity of

limitations statutes is one of constitutional dimension. In California, statutes of limitations, being procedural, are normally retroactively applied to accrued causes of action; but the court must inquire whether, in a given case, that retrospective application may violate due process by in effect eliminating the plaintiff's right. If the time left to file suit is reasonable, no such constitutional violation occurs, and the statute is applied as enacted. If no time is left, or only an unreasonably short time remains, then the statute cannot be applied at all. This analysis is set forth clearly in *Rosefield Packing Co.*, *supra*, pointing out the question is one of constitutionality; the statute may not operate immediately to cut off the accrued remedy "or within so short a time as to give the party no reasonable opportunity to exercise his remedy;" if the statute does so operate it is unconstitutional. (*Rosefield Packing Co.*, *supra*, 4 Cal.2d at p. 122, 47 P.2d 716.) Further, the issue is one of law for appellate resolution. In *Rosefield*, retrospective application left the plaintiff "practically an entire year" to bring suit after enactment of the amendment (*id.* at p. 123, 47 P.2d 716); "[t]here can be no doubt but that this was a reasonable time...." (*Ibid.*)

(*Aronson v.*

Superior Court (1987) 191 Cal.App.3d 294, 297.)

Under the above

authority, direct application of the statute of repose in Code of Civil Procedure § 871.21, subd. (a) would cut off Plaintiff's claims immediately upon the effective date of the statute, without giving a reasonable time in which to sue. Thus the statute of repose cannot be applied to Plaintiff's first through third causes of action consistent with due process.

However, the fourth

cause of action for breach of the implied warranty of merchantability is time-barred. The statute of repose articulated in Code of Civil Procedure § 87121 applies to claims subject to Code of Civil Procedure § 871.20, which applies “where the request for restitution or replacement is based on noncompliance with the applicable express warranty. (Code Civ. Proc., § 871.20, subd. (a).) The claim for breach of implied warranty is thus not governed by the bounds of the statute of repose.

The statute of limitations for breach of warranties under Commercial Code § 2725 is four years after accrual. (Com. Code § 2725, subd. (a).) There is a delayed discovery exception, but the language of the discovery exception is that a cause accrues upon delivery of the good, “except that where a warranty explicitly extends to future performance of the goods.” (Com. Code § 2725, subd. (2), italics added.) An implied warranty by definition cannot “explicitly extend[] to future performance of the goods,” because an implied warranty contains no explicit terms. Courts have accordingly held that “the exception must be narrowly construed, and that it applies only when the seller has expressly agreed to warrant its product for a specific and defined period of time.” (Cardinal Health 301, Inc. v. Tyco Electronics Corp. (2008) 169 Cal.App.4th 116, 130.) “Because an implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held it is not a warranty that ‘explicitly extends to future performance of the goods.’” (Id. at p. 134.)

Thus the fourth cause of action was time-barred within four years of delivery of the vehicle in December 2018, and was time-barred before the original Complaint was filed in June 2025. The demurrer is therefore SUSTAINED without leave to amend to the fourth cause of action for breach of implied warranty.

The sixth cause of action for fraud is also time-barred as pleaded. There is a three-year statute of limitations for “[a]n action for relief on the ground of fraud or mistake. The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Code Civ. Proc., § 338, subd. (d.) Plaintiff’s fraud claim would be barred, absent application of the discovery rule or some other equitable tolling doctrine, by December 26, 2021.

“Where a claim is time-barred on its face, the plaintiff must specifically plead facts that would support

equitable tolling.” (Long v. Forty Niners Football Co., LLC (2019) 33 Cal.App.5th 550, 555.) The “discovery rule. . . postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action.” (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 807.) “A plaintiff has reason to discover a cause of action when he or she ‘has reason at least to suspect a factual basis for its elements.’” (Ibid.) Courts “look to whether the plaintiffs have reason to at least suspect that a type of wrongdoing has injured them.” (Ibid.) The accrual of a cause of action in relation to the discovery rule is normally a question of fact. (Id. at p. 810.)

On a demurrer, the court must take as true statements such as that as plaintiff “did not discover, nor suspect, nor was there any means through which her reasonable diligence would have revealed, or through which she would have suspected,” the cause of an injury was the defendant in question. (Fox, supra, 35 Cal.4th at p. 811.) However: “A plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.” (Id. at p. 808.) The burden is on the plaintiff to show diligence, and conclusory allegations will not withstand demurrer. (Ibid.)

Here, Plaintiff fails to plead facts supporting application of the delayed discovery rule or any other equitable tolling doctrine to the fraud claim. Plaintiff alleges in conclusory terms that repair technicians on unspecified dates represented that the vehicle had been repaired (FAC ¶ 12), and that “Plaintiff discovered Defendants’ wrongful conduct alleged herein shortly before the filing of the complaint.” (FAC ¶ 45.) These allegations are insufficient to invoke the delayed discovery rule.

The demurrer is accordingly SUSTAINED without leave to amend as to the fourth cause of action, SUSTAINED with leave to amend as to the sixth cause of action for fraud, and is otherwise OVERRULED.

Superior Court of California

County of Los Angeles

Department 732

PATRICIA
CORNEJO.,

Plaintiff

v.

FORD MOTOR COMPANY, et al.,

Defendants.

Case No.:
25STCV19481

Hearing Date: September 21, 2026

[TENTATIVE] RULING RE:

Defendant

Ford Motor Company's Demurrer to the First Amended Complaint

Defendant Ford Motor Company's Demurrer to the First

Amended Complaint is SUSTAINED

without leave to amend as to fourth cause of action for breach of the implied
warranty of merchantability and SUSTAINED with leave to amend as to the sixth
cause of action for fraudulent concealment. Any amended pleading shall be filed within 20
days of this order.

Defendant to give notice.

Dated: September 21, 2026

Hon.

Richard S. Kemalyan

Judge
of the Superior Court